

	vs. OC Media Tower, L.P. 30-2021-01227550-CU-FR-CJC	
9	Mattatall vs. Brett Dinovi & Associates California, LLC 30-2025-01527131-CU-WE-CJC	Motion to Compel Arbitration and Stay Proceedings Defendant Brett Dinovi & Associates California, LLC's Motion to Compel Arbitration is GRANTED. Plaintiff's evidentiary objections are OVERRULED. Defendant's evidentiary objections are OVERRULED. Plaintiff's request for judicial notice is GRANTED. Defendant seeks to compel arbitration pursuant to Section 17 of an offer letter for the position of Associate Vice President of School Services (Agreement). (Bermudez Decl., ¶ 9, Ex. A.) The parties do not dispute Plaintiff signed the Agreement. Rather, Plaintiff contends the Agreement is both procedurally and substantively unconscionable. "Both procedural unconscionability and substantive unconscionability must be shown, but 'they need not be present in the same degree' and are evaluated on 'a sliding scale.'" (<i>Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC</i> (2012) 55 Cal.4th 223, 246-247 [citations omitted].) <u>Procedural unconscionability</u> While adhesive contracts offered on a "take-it-or-leave-it" basis typically contain some aspect of procedural unconscionability, the degree of procedural unconscionability of an adhesion agreement will be low absent evidence of any other indication of oppression or surprise. (<i>Serpa v. California Surety Investigations, Inc.</i> (2013) 215 Cal.App.4th 695, 704 [citations omitted].) Plaintiff's declaration testimony states she was not informed the Agreement contained an arbitration clause and no one explained to her there were additional terms in the offer or what arbitration meant when she was presented with the offer. (Mattatall Decl., ¶ 4.) Plaintiff does not state she was given insufficient time to read the Agreement or precluded from consulting with counsel or asking questions regarding the Agreement. Nor does Plaintiff contend the Agreement was particularly

	verbose, illegible, or complex. "Reasonable diligence requires the reading of a contract before signing it. A party cannot use [her] own lack of diligence to avoid an arbitration agreement." (<i>Brookwood v. Bank of America</i> (1996) 45 Cal.App.4th 1667, 1674 [citation omitted].) Additionally, though the JAMS rules are not attached to the Agreement, the Agreement provides the specific website from which they may be obtained. (See <i>Lane v. Francis Capital Management, LLC</i> (2014) 224 Cal.App.4th 676, 690-691.) Accordingly, Court finds a low degree of procedural unconscionability. <u>Substantive unconscionability</u> The non-compete provision in Section 2 of the Agreement is not void as a matter of law as it purports to apply "[w]hile [Plaintiff is] employed by the Company." (See <i>Techno Lite, Inc. v. Emcod, LLC</i> (2020) 44 Cal.App.5th 462, 471 [cleaned up].) Plaintiff does not provide any authority Labor Code section 96, subdivision (k) permits business activities that would interfere with Plaintiff's performance of her duties or compete with Defendant's business while employed by Defendant. The mileage rate set forth in the Agreement is not so harsh and one-sided as to "shock the conscience." (See <i>Pinnacle, supra</i>, 55 Cal.4th at p. 246 [citations omitted].) The Agreement does not lack mutuality as it applies to any disputes relating to Plaintiff's employment with Defendant, which would necessarily include any claims Defendant may have against Plaintiff relating to her employment, not just those that Plaintiff brings against Defendants. The fact that the Agreement's delegation clause was presented as part of an adhesion contract demonstrates only a low degree of procedural unconscionability, as discussed above. Finally, while categorical PAGA waivers are unenforceable (<i>Adolph v. Uber Technologies, Inc.</i> (2023) 14 Cal.5th 1104, 1117 [citation omitted]), the Agreement provides the paragraph regarding waiver of representative actions "shall not apply . . . to any action or claim that cannot be subjected, compelled, or submitted to, mandatory arbitration as a matter of applicable law." Thus, by the Agreement's terms it would not apply to a waiver of a non-individual PAGA claim, which cannot be subject to
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		mandatory waiver, while permitting Defendant to enforce the agreement insofar as it mandated arbitration of Plaintiff's individual PAGA claim. (See <i>Viking River Cruises, Inc. v. Moriana</i> (2022) 596 U.S. 639, 662.) The Agreement is not substantively unconscionable. The matter is STAYED pending arbitration. Arbitration Status Review set for 8/25/2027 at 1:30 PM. The parties are ORDERED to file a Joint Status Report 5 days prior. Clerk to give notice.
10	Morris vs. Newman 30-2025- 01508723-CU- OR-CJC	Motion for Appointment of Receiver and Issuance of Preliminary Injunction Plaintiff Paula Sue Morris's Motion to Appoint Receiver and Issuance of Preliminary Injunction is GRANTED . Plaintiff's request for judicial notice of (ROA 42) of Wyoming court filings is GRANTED. Defendant's evidentiary objections to the Declarations of Stephen J. Thomas and Erik Perkowski are OVERRULED. In the complaint, Plaintiff alleges a scheme by Defendants to fraudulently take her equity and control of a condominium in Laguna Beach. Plaintiff claims Defendants encumbered the property with over \$2 million in secured debt while failing to make payments for 16 months, resulting in a notice of default and delinquent property taxes and HOA dues. A foreclosure sale of the property is scheduled for 9/2/2026. (Thomas Reply Decl., ¶ 4.) Plaintiff seeks appointment of a receiver to preserve and sell the property to avoid a below-market foreclosure sale. The secured lender which has initiated foreclosure proceedings, Core Lending, supports the appointment of a receiver to conduct a market sale. Plaintiff requests appointment of Richardson C. Griswold, an experienced court-appointed receiver and real estate broker. Plaintiff also seeks a preliminary injunction preventing Defendants from transferring or further encumbering the property or allowing the foreclosure sale to proceed. Defendants oppose the motion on the grounds, (1) the lender is the driving force behind appointment of the receiver, (2) Plaintiff was largely responsible for or knowingly consented to the alleged encumbrances and/or waste of the property, (3) Plaintiff relies on